

THE UNIVERSAL HOUSE OF JUSTICE

27 March 2016

To an individual Bahá'í

1 Dear Bahá'í Friend,

2 The Universal House of Justice has received your email letter of 12 March 2016 seeking guidance pertaining to the disposition of unused fertilized eggs following in vitro fertilization. Also received was your email letter of 11 March 2016 addressed to your National Spiritual Assembly and forwarded by it to the Bahá'í World Centre on 14 March 2016. Your desire to firmly adhere to the teachings of the Faith in this regard is warmly acknowledged. We have been asked to convey the following in reply.

3 Statements made by the beloved Guardian establish the principle that, for Bahá'ís, the process of reproduction pertains to a husband and wife. In this light, the House of Justice has determined that, in relation to procedures for assisted reproduction, only the sperm of the husband and the egg cell of the wife should be used, and it would not be acceptable for the friends to use donated sperm or eggs from another party or to donate them to others. This also applies to the donation or receipt of a fertilized egg.

4 Furthermore, the House of Justice has concluded that the spiritual and social implications of the use of a surrogate mother to provide for the gestation of an embryo, even when the embryo results from the fertilization of the wife's egg cell by the husband's sperm, are too far-reaching for such a procedure to be acceptable for Bahá'ís. Even if the concept of adoption of a fertilized egg was considered to be distinct from its donation, its transfer from a couple and implantation in the womb of another mother is very closely related to surrogacy and raises other complex issues.

5 Beyond these determinations that are based on the guidance provided by Shoghi Effendi, the House of Justice does not wish to legislate now on the use of in vitro fertilization or the disposition of any fertilized eggs following the in vitro fertilization process. Hence, for the time being, it is left to the believers to decide on such matters.

6 In making such a decision, a thoughtful believer will naturally have profound regard for the sanctity of life. The Bahá'í teachings indicate that the human soul comes into being at the time of conception. Yet, they do not precisely define the biological moment and nature of the event described as "conception". Indeed, one understanding of conception is that it coincides with fertilization; yet another is that it occurs following fertilization and implantation, the onset of pregnancy. Thus, it may not be possible to know when the association of the soul with the material form occurs, and such questions may be insoluble by human thought or investigation since they relate to mysteries of the spiritual world and the nature of the soul itself. The following extract from the Writings of Bahá'u'lláh may be of interest in this regard:

⁷ Know that the soul which is common to all men cometh forth following the commingling of things and after their maturation, as thou dost observe in the germ: once it hath developed to its predestined stage, God manifesteth the soul that was latent within it. Thy Lord, verily, doeth what He willeth and ordaineth what He pleaseth.

⁸ (The Summons of the Lord of Hosts: Tablets of Bahá'u'lláh (Wilmette: Bahá'í Publishing Trust, 2006, 2006 printing), pp. 229–30)

⁹ Rest assured of the prayers of the House of Justice in the Holy Shrines that you and your husband may be aided and assisted through the loving providence of the Almighty in your consideration of this matter.

With loving Bahá'í greetings,

Department of the Secretariat

[signed: The Universal House of Justice]